



File No.: EXP202103411

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by ALPA 57 PRODUCCIONES, S.L. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated March 9, 2023, and based on the following:

FACTS

FIRST: On March 9, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202103411, by virtue of which a fine of 10,000 euros (ten thousand euros) was imposed on ALPA 57 PRODUCCIONES, S.L. with NIF B13512892 for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

This resolution, which was notified to the appellant, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00437/2022, the following is recorded:

FIRST: The complainant, on August 26, 2021, filed a complaint with this Agency, for having received a call from Mas Luz Energía posing as their operator Naturgy. It was noted that they had their personal data as they only requested confirmation of it.

Subsequently, they received a call from Naturgy informing them of their cancellation with the entity and were charged invoices dated 30/07/2021 and 06/08/2021 from the Iberian Energy Supplier - Mas Luz Energía.

SECOND: It is evidenced by the Iberian Energy Supplier that the complainant's data was transferred by the telemarketing service provider Alpa 57 Producciones, S.L.

THIRD: There is a "Telemarketing Service Provision Contract" formalized between Iberian Energy Supplier, S.L. and Alpa 57 on February 3, 2021.

FOURTH: It is verified that a notification sent to AIMART MARKETING S.L., subcontractor of the defendant, is recorded as correctly delivered on November 17, 2022. AIMART MARKETING S.L. has not sent any response to this Spanish Agency for Data Protection.

FIFTH: There is a "Telemarketing Service Provision Contract" formalized between AIMART MARKETING S.L. and ALPA 57 PRODUCCIONES, S.L., signed on September 19, 2021, and its eleventh clause states, "the contract will come into force at the moment of its signature."

SIXTH: In the recording provided by Mas Luz Energía - Iberian Energy Supplier, it is confirmed that the telephone operator states: "today is July 22, 2021."

THIRD: The appellant submitted a reconsideration appeal on April 14, 2023, to this Spanish Agency for Data Protection.

As the basis for the appeal, the appellant states: << First of all, I apologize for the confusion caused due to the temporal inconsistency in the contract detected by the Spanish Agency for Data Protection, as this company did not take that detail into account when offering explanations. It may be that, indeed, AIMART MARKETING S.L. had its database and managed the call, although we cannot provide any information, as currently, our systems do not contain personal data or

information regarding the complainant, only recording "lead origin and management: AIMART MARKETING" as a reminder for complaints. This is the reason why it has been indicated at all times to direct inquiries to that company, having ignored or overlooked unintentionally, until this moment, the detected inconsistency, and due to the time elapsed, and given that we do not have information on clients or access to the databases or personal data of clients related to those made with Iberian Energy Supplier or Aimart Marketing S.L. due to the deletion of information upon the end of relationships, we cannot provide the requested information. As stated in the resolution of the notified sanctioning procedure, the telemarketing service provider (Alpa 57 Producciones, S.L.) could only carry out commercial actions authorized by Iberian Energy Supplier, as it previously verified that those interested had provided their consent for the transfer of their personal data, therefore, according to that established protocol, it is undeniable that Iberian Energy Supplier verified the origin of the complainant's data, the existence of consent, and authorized the commercial action. It may even be that the origin of the data was provided by Iberian Energy Supplier, a circumstance we cannot certify because the deletion of all information is an obligation to fulfill upon termination of the commercial relationship>>.

On the other hand, they indicate that they do not have the recording of the call and that the processing carried out was lawful and legitimate, and that they do not have further information.

They also state that the contested resolution violates the right to evidence, is contrary to the principle of proportionality, and that it would have prescribed, and request that it be declared null or, subsidiarily, annulled.

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LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the allegations made by the appellant, first, that it could only carry out commercial actions authorized by Suministrador Ibérico de Energía.

In this regard, it should be noted that Article 4.7 of the GDPR defines the figure of the "data controller" or "controller" as "the natural or legal person, public authority, service or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States;"

The data processor is another subject to whom the GDPR imposes the duty to comply with certain obligations regarding data protection. Article 4.8 of the GDPR defines it as "the natural or legal person, public authority, service or other body that processes personal data on behalf of the data controller;."

The figure of the data processor is regulated in Article 28 of the GDPR and, according to point 10 of the provision, in certain cases it may be considered a data controller: "Without prejudice to the

provisions of Articles 82, 83 and 84, if a data processor infringes this Regulation by determining the purposes and means of the processing, it shall be considered a data controller with respect to that processing.”

The Guidelines 7/2020, on the concepts of data controller and data processor in the GDPR, adopted by the European Data Protection Board (EDPB) on 07/07/2021, state regarding this latter figure: “To be considered a data processor, it is necessary to meet two fundamental conditions: to be an independent entity from the data controller and to process personal data on behalf of the latter.

The data processor must process the data solely following the instructions of the controller.

Nevertheless, the instructions of the data controller may leave some margin of discretion regarding how to best serve its interests, allowing the processor to choose the most appropriate technical and organizational means. However, if the data processor does not adhere to the instructions of the controller and begins to determine its own purposes and means of processing, it will be infringing the GDPR. In such cases, the data processor will be considered a controller in relation to that processing.”

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treatment and may be sanctioned for not adhering to the instructions of the responsible party.”

At this point, it should be emphasized that the appealing party had the status of the data controller.

In the contract entered into between the appealing party, a telemarketing service provider, and Suministrador Ibérico de Energía, dated February 3, 2021, in its stipulation 5.1, it is established: “that the provider, the appealing party, will carry out its activity at its own risk and in 11.1 (data protection), it is determined that for the proper execution of the contracted services, the provider will use its own database of potential clients. The Provider, prior to using any of its own databases, will guarantee and certify by providing all necessary documentation that the origin of such database is legitimate and that it has the consent/authorization of the potential clients for the execution of commercial actions, that it complies with all applicable regulations on data protection and processing, and that such database is cleansed in such a way that it does not contain records that are registered in any “Robinson list” nor records that have exercised their right to object to being in that database. In 11.2, it is determined that if for the provision of the service, the Provider had to access personal data for which Suministrador is responsible, it is obliged to respect all obligations that may correspond according to the current legal provisions and any other complementary provision or regulation that may also be applicable.”

In summary, the appealing party occupied the legal position of data controller, a subject who under the GDPR is responsible for complying with the principles governing the processing of personal data.

Well, the telemarketing service provider, the appealing party, transferred the personal data of the interested party to whom it offered its products and services, and the appealing party obtained them in the capacity of an independent data controller from Suministrador Ibérico de Energía.

In conclusion, at the time of signing the service provision contract, the appealing party undertook the commitment to transfer only the personal data of those interested who had given their consent for that purpose.

In response to the allegation regarding the violation of the principle of accountability in Article 28 of the LRJSP, it should be noted that objective responsibility requires the appellant to demonstrate that it acted diligently, adopting all necessary measures within its reach, appropriate and foreseeable to avoid causing harm (STS of April 15, 1999), and therefore, it was already established in the resolution of the sanctioning procedure that the appealing party violated Article 6.1 of the GDPR, since it processed the personal data of the claimant (NIF, address, universal supply point code, email, mobile number, bank details) without legal justification for doing so. The personal data was incorporated into the company's information systems, without having demonstrated that it had a legal basis for the collection and subsequent processing of such personal data. Consequently, it has processed personal data without having demonstrated that it has the legal authorization to do so.

Secondly, regarding the claim that the contested resolution violates the right to

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In relation to the evidence, it must be stated that on November 17, 2022, the instructor of the procedure agreed to carry out the following evidence: "Request from AIMART MARKETING S.L. 1. Details of the claimant Dña. KARELYS NAILETH VARGAS NÚÑEZ (name, address, bank account, etc.) prior to the commercial call in which the electricity supply was contracted in the name of the claimant. 2. Origin of the aforementioned claimant's data. 3. All documentation justifying consent for obtaining the aforementioned information prior to the commercial call. 4. Contract signed between AIMART MARKETING S.L. and ALPA 57 Producciones S.L."

On November 17, 2022, the Support Service of the Electronic Notifications Service and Enabled Electronic Address certifies that the notification was sent to: AIMART MARKETING SL - B16960718 Subject: "Notification of trial period" with the following result: Date of availability: 11/17/2022 11:30:17 Date of acceptance: 11/17/2022 11:38:05.

This notification is recorded as correctly delivered on November 17, 2022.

Although the opening of the evidentiary period was not notified to the appealing party, the evidence requested by them has indeed been carried out, so they have not suffered any type of defenselessness. Moreover, the execution of such evidence, as well as its result, were disclosed in the resolution proposal that was notified to the now appealing party, without any allegations being made by them regarding this in the claims submitted to such proposal.

It is necessary to bring to attention the Judgment of the National Court from its Administrative Litigation Chamber, Section 1, dated June 25, 2009 (rec. 638/2008), which states that, "this Chamber has reiterated on numerous occasions (SAN 8-3-2006, Rec. 319/2004, among others), echoing the doctrine of the Constitutional Court, that for a procedural defect to entail the nullity of the contested act, it is necessary that it does not consist of mere procedural irregularities, but rather defects that cause a situation of material defenselessness, not merely formal, that is, that they have resulted in a real detriment to the appellant's right of defense, causing them real and effective harm (SSTC 155/1988, of July 22, 212/1994, of July 13, and 78/1999, of April 26)."

That is to say, it is necessary for the interested party to find themselves, in effect, in a situation of defenselessness, and it is essential that the defenselessness be material and not merely formal (Judgments of the Constitutional Court 90/1988, 181/1994, 314/1994, 15/1995, 126/1996, 86/1997, and 118/1997, among others), which implies that the aforementioned defect has caused real and effective harm to the defendant in their defense possibilities (Judgments of the Constitutional Court 43/1989, 101/1990, 6/1992, and 105/1995, among others).

And in the case examined, there has been no reduction in the exercise of the right of defense of the summoned party, as the evidence they requested in the allegations to the initiation agreement has been carried out, and they have been able to argue throughout the sanctioning procedure what they deemed appropriate for their rights.

Thirdly, regarding their allegation that they do not have the recording of the call at their disposal, it should be noted that the appealing party could have...

having requested a copy of the file and not having done so.

Fourthly, regarding the breach of the principle of proportionality, the GDPR expressly provides for the possibility of gradation, through the provision of fines that can be modulated, taking into account a series of circumstances of each individual case.

Article 83 of the GDPR, "General conditions for the imposition of administrative fines," states in its paragraph 1 that the supervisory authority shall ensure that the imposition of fines for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 complies, in each individual case, with the

principles of effectiveness, proportionality, and deterrent effect.

The principle of proportionality implies a correlation between the infringement and the sanction, prohibiting unnecessary or excessive measures, so that it must be suitable to achieve the purposes that justify it.

Article 83.2 of the GDPR details the technique to be followed to achieve such adequacy between the sanction and the infringement committed through a relationship of criteria or factors to gradate its amount.

Regarding this infringement, it is estimated that the following factors reflect a greater unlawfulness of the conduct or the culpability of the allegedly infringing entity:

As aggravating factors:

- That the facts subject to the claim are attributable to a lack of diligence on the part of the respondent, given that it has not provided any document explaining the origin of the claimant's data that has been subject to processing. (Article 83.2.b, GDPR). The Judgment of the National Court of 17/10/2007 (rec. 63/2006), regarding entities whose activity involves continuous processing of customer data, indicates that "...the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, rigor and exquisite care must be insisted upon to comply with the legal provisions in this regard."

- The connection of the responsible party with the processing of personal data (Article 83.2.k of the GDPR in relation to Article 76.2.b of the LOPDGDD).

And, the sanction was graduated and imposed on the appellant, setting it at the amount of €10,000 for the infringement of Article 83.5.a GDPR.

For all the above, the required proportionality between the infringing conduct and the imposed sanction has been scrupulously respected.

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The appellant adds that any infringement or sanction would have expired.

To this end, the alleged infringement of Article 6.1. GDPR attributed to the respondent would in no case have expired, so the expiration could not serve as a legal basis for the filing of the file that the respondent requests in its allegations in the appeal for reconsideration.

The GDPR and the LOPDGDD establish the limitation periods for infringements and sanctions in the field of data protection. According to Article 72 of the LOPDGDD, infringements considered very serious have a limitation period of three years.

For its part, according to Article 78 of the same LOPDGDD, sanctions for amounts equal to or less than €40,000 expire in one year.

Article 30, paragraph 2, of Law 40/2015, of October 1, on the Legal Regime of the Public Sector indicates that "the limitation period for infringements shall begin to run from the day on which the infringement was committed. In the case of continuous or permanent infringements, the period shall begin to run from the day the infringing conduct ceased."

As stated in Article 75 of the LOPDGDD, the limitation of the infringement may be interrupted by the initiation, with the knowledge of the interested party, of the sanctioning procedure.

However, the period will resume when the sanctioning file has been suspended for more than six months for reasons not attributable to the alleged infringer.

According to the complaint submitted and the documentation attached to it, the facts evaluated in the present proceedings date back to June 22, 2021, the date of the recording, this Agency having become aware of them by virtue of the aforementioned complaint, registered on August 26, 2021.

Thus, considering that the limitation period begins to run from the day the alleged infringement was

committed, in this case, the "dies a quo" of the limitation computation must be set on June 22, 2021, so it had not expired.

Therefore, it is not possible to take into account the entity's argument that claims the infringement committed has expired without indicating the reason why it considers it has expired.

Regarding the limitation period of the sanction, for the calculation of the limitation period referred to in Article 78 of the LOPDGDD, it will begin to run from the day after the resolution of the sanction becomes enforceable or when the period for appealing it has elapsed. It is interrupted by the initiation, with the knowledge of the interested party, of the execution process, and will restart if such procedure is suspended for more than six months for reasons not attributable to the infringer. Date of the resolution March 9, 2023. It is clear that the sanction has not expired.

Therefore, having analyzed the allegations made in this optional appeal of

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In the review, it is verified that no new legal arguments have been presented that would allow for a reconsideration of the meaning of the sanctioning resolution issued on March 9, 2023.

III

Conclusion

Consequently, in the present review, the appealing party has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the review filed by ALPA 57 PRODUCCIONES, S.L. against the resolution of this Spanish Agency for Data Protection issued on March 9, 2023, in file EXP202103411.

SECOND: TO NOTIFY this resolution to ALPA 57 PRODUCCIONES, S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be enforced once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

Mar España Martí

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